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मध्यप्रदेश राजपत्र

(असाधारण)
प्राधिकार से प्रकाशित

क्रमांक 222]

भोपाल, गुरुवार, दिनांक 23 जुलाई 2026—श्रावण-1, शक 1948

विधि और विधायी कार्य विभाग

भोपाल, दिनांक 23 जुलाई 2026

क्र. 7036-124-इक्कीस-अ (प्रा.) .- भारत के संविधान के अनुच्छेद 348 के खण्ड (3) के अनुसरण में मध्यप्रदेश निजी विश्वविद्यालय (स्थापना एवं संचालन) विधेयक, 2026 (क्रमांक 8 सन् 2026) का अंग्रेजी अनुवाद राज्यपाल के प्राधिकार से एतद्वारा प्रकाशित किया जाता है.

मध्यप्रदेश के राज्यपाल के नाम से तथा आदेशानुसार,

निशीथ खरे, अतिरिक्त सचिव.

MADHYA PRADESH BILL

NO. 8 OF 2026

**THE MADHYA PRADESH NIJI VISHWAVIDYALAYA (STHAPNA AVAM SANCHALAN)
SANSHODHAN VIDHEYAK, 2026****TABLE OF CONTENTS.****Clauses :**

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MADHYA PRADESH BILL

NO. 8 OF 2026

THE MADHYA PRADESH NIJI VISHWAVIDYALAYA (STHAPNA AVAM SANCHALAN) SANSHODHAN VIDHEYAK, 2026

A Bill further to amend the Madhya Pradesh Niji Vishwavidyalaya (Sthapna Avam Sanchalan) Adhiniyam, 2007.

Be it enacted by the Madhya Pradesh Legislature in the seventy-seventh year of the Republic of India as follows:-

1. (1) This Act may be called the Madhya Pradesh Niji Vishwavidyalaya (Sthapna Avam Sanchalan) (Sanshodhan) Adhiniyam, 2026.

**Short title and
commence-
ment.**

(2) It shall come into the force from the date of its publication in the official Gazette.

2. In Section 2 of the Madhya Pradesh Niji Vishwavidyalaya (Sthapna Avam Sanchalan) Adhiniyam, 2007 (No. 17 of 2007) (hereinafter referred to as the principal Act),-

**Amendment of
Section 2.**

(i) after clause (a), the following clause shall be inserted, namely:-

"(aa) "annual fee" means the annual fee paid by the private university to the Regulatory Commission;"

(ii) clause (h) shall be omitted.

3. In Section 7 of the principal Act, in sub-section (1),-

**Amendment of
Section 7.**

(i) sub-clause (b) of clause (i) shall be omitted.

(ii) for clause (ii) and (iii), the following clauses shall be substituted, namely:-

"(ii) subject to prescribed norms, if any, of the concerned Regulatory Council or Councils or the University Grants Commission, it shall procure an adequate piece of contiguous land for the main campus to be established and submit its papers of ownership;

(iii) subject to the prescribed norms, if any, of the concerned Regulatory Council or Councils or the University Grants. Commission, it shall make available built-up area in the form of buildings and ancillary structure, adequate for administrative purposes and for conducting the academic programmes;"

4. For section 11 of the principal Act, the following section shall be substituted, namely:-

**Substitution of
Section 11.**

"11. Every private university shall pay to the Regulatory Commission, such annual fee, as may be prescribed, with effect from 1st April, 2027 or from the date of its incorporation, whichever is later. The annual fee shall be paid in such manner and within such time, as may be prescribed."

Annual fee.

5. In Section 36 of the principal Act, in clause (f) of the sub-section 10, the words "endowment fund and/or" shall be deleted.

**Amendment of
Section 36.**

**Amendment of
Section 40.**

6. In Section 40 of the principal Act, for sub-section (2), the following sub-section shall be substituted, namely:-

"(2) The Regulatory Commission, on receipt of such information, shall have the right to issue such directions to the sponsoring body for the fulfillment of its obligations under sub-section (1), as it may deem necessary and if the sponsoring body contravenes the provisions of sub-section (1), the Regulatory Commission shall make arrangements for completion of courses, conduct of examinations, award of degrees, etc., of students of the private university, either by undertaking the job itself or by assigning the job to some other university, in such manner that the interest of the students are not affected adversely in any manner and expenditure made for these arrangement for the students shall be made good from the money deposited in the general fund of the private university."

**Amendment of
Section 41.**

7. In the Section 41 of the principal Act, in sub-section (10), the words "endowment fund or" shall be deleted.

**Amendment of
Section 42.**

8. In the Section 42 of the principal Act, for clause (c) of sub-section (2), the following clause shall be substituted, namely:-

"(c) the annual fee under Section 11, its fixation, payment and use;"

STATEMENT OF OBJECTS AND REASONS

Under the Mdahya Pradesh Niji Vishwavidyalaya (Sthapana Evam Sanchalan) Adhiniyam, 2007 (No. 17 of 2007), starting a private university requires at least 10 hectares of land, 2,500 square meters of built-up area and an endowment fund of Rs. 5 crore. Land availability is limited and its cost is prohibitive. Norms for infrastructure hinder small investors wishing to start new institutions. Similarly, the large amount of endowment fund remains unused. Such provision often hinder edupreneurs, who cannot arrange a large amount of funding before the university even begins, even it they have a strong and robust financial plan for establishing the university. This often hinders the entry of high-quality institutions into the higher education sector and limits competition.

2. Therefore, in order to simplify the criteria required for starting a private university and attract private investment, standards like minimum requirements of land and built-up area and setting up of endowment fund should be eliminated. For this, it is proposed to amend the said Act suitably.

3. Hence this Bill.

Bhopal :

Dated the 19th JULY, 2026

INDER SINGH PARMAR

MEMBER-IN-CHARGE.